

Concepts, Inc., 792 F.3d 1121 (9th Cir. 2015) (en banc). Finally, there is no showing of intent to deceive on the part of defendants. Fraud is an intentional tort.

2.

CASE #	CASE NAME	HEARING NAME
CVME2506577	QIN VS KOLL	MOTION TO DISMISS 1 ST AMENDED COMPLAINT

Tentative Ruling: Motion to Dismiss is Denied.

Plaintiffs Jin Jack Qin, Heavenstone Ranch Corp., and Temecula QK Holdings, LLC (collectively “Plaintiffs”) allege that on April 26, 2022, they agreed to sell certain real property located at 3445 Monte Verde Road in Temecula to Defendant AJK Investments LLC (“AJK”) for \$328,000, with title to transfer only upon payment of the full purchase price. However, Defendant Gregory S. Koll (“Koll”) caused the property to be transferred into the name of AJK by recording a deed, without any corresponding payment and then transferred the property from AJK to Defendant Stone Compass Group, LLC (“Stone Compass”), a now suspended entity under his control, in an effort to frustrate recovery and obfuscate ownership and secured a loan on the improperly, transferred property from Defendant ELS Holdings LLC (“ELS”), who later assigned the loan and security interest to Defendant Churchill Funding I LLC (“Churchill”). Koll is alleged to have acted while acting in a fiduciary capacity as an officer of Plaintiff Temecula QK Holdings. Plaintiffs allege the \$328,000 was never paid, leaving title clouded and Plaintiffs seeking to void the transfers, cancel the resulting deeds and lien, and quiet title.

On June 9, 2025, Plaintiffs filed this action. On October 8, 2025, Plaintiffs filed a First Amended Complaint (“FAC”) alleging eight (8) causes of action: 1) Declaratory Relief - Void Transfer; 2) Fraud (Intentional Misrepresentation); 3) Breach of Fiduciary Duty; 4) Breach of Contract; 5) Constructive Trust; 6) Cancellation of Instrument (Civ. Code § 3412); 7) Cancellation of Deed of Trust / Lien; and 8) Quiet Title.

On January 21, 2026, the parties stipulated, and the Court ordered that Plaintiffs shall be granted leave to file a Second Amended Complaint within 30 days.

Defendants Koll and Stone Compass (collectively “Defendants”) now move the Court for an entry of judgment of dismissal due to Plaintiffs failure to timely file the SAC pursuant to their stipulation and the Court’s order. (C.C.P., § 581(f)(2).)

On April 22, 2026, at the CMC, the Court and the parties conferred regarding the status of the amended complaint. The Court stated the case needed to be at issue by the next hearing on June 8, 2026.

On June 8, 2026, Plaintiffs filed their Second Amended Complaint (“SAC”).

Plaintiffs oppose the motion arguing the Court has exercised its discretion in permitting leave to amend, the SAC is now on file and dismissal is not required or appropriate. They state the late filing was due to counsel’s serious cardiac illness

Pursuant to C.C.P., section 581(f)(2): “The court may dismiss the complaint as to that defendant when ... after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” In any event, dismissal is discretionary and may well be denied where plaintiff furnishes a sufficient excuse for delay in amending. (*Contreras v. Blue Cross of Calif.* (1988) 199 CA3d 945, 948.)

The rule is different where an amended pleading is filed beyond the date permitted by the court (and before a motion to dismiss is made). In such cases, the untimely amendment is subject to a motion to strike upon formal notice and hearing. No dismissal motion will lie until the amended pleading is stricken. (CRC rule 3.1320(i); *Gitmed v. General Motors Corp.* (1994) 26 CA4th 824, 827.)

Here, the procedural posture of this case does not fit exactly within C.C.P., § 581(f)(2) as no demurrer was actually filed and/or ruled on. Rather, the parties stipulated that Plaintiffs may file a SAC in lieu of a demurrer. The stipulation and order provided at paragraph 3 “Plaintiffs shall file and serve the Second Amended Complaint within thirty (30) days of the date the Court signs and enters this Order. If Plaintiffs fail to timely file and serve the Second Amended Complaint within this deadline, Defendants shall retain all rights and remedies available to them under the California Code of Civil Procedure, including but not limited to the right to file a demurrer or other responsive pleading to the First Amended Complaint.” It is undisputed that Plaintiffs did not timely file a SAC, but have since done so. They have also provided a sufficient excuse for the delay in amendment (i.e. Plaintiffs counsel’s illness).

3.

CASE #	CASE NAME	HEARING NAME
CVME2509541	PRUITT VS THE LAKES COMMUNITY ASSOCIATION	DEMURRER ON 1 ST AMENDED COMPLAINT

Tentative Ruling: Special Demurrer Overruled for Uncertainty. Demurrer to the Second cause of action for Negligence is overruled. Demurrer to the First(Defamation), Third(IIED), Fourth(NIED), and Fifth(Davis-Stirling) causes of action are sustained with 20 days leave to amend. Trial Setting Conference is continued to November 3, 2026, 8:30 am M301 as the pleadings are not set.

On 5/8/2026, Joseph Pruitt, in pro per, filed the operative first amended complaint (“FAC”) against The Lakes Community Association. The complaint asserts the following causes of action: (1) defamation; (2) negligence; (3) intentional infliction of emotional distress (“IIED”); (4) negligent infliction of emotional distress (“NIED”); (5) violation of the Davis-Stirling Common Interest Development Act. The FAC states that on 6/20/2025, Defendant issued a written notice that Plaintiff’s minor son violated the HOA rules. (FAC, ¶ 6.) Plaintiff takes issue with the veracity of the notice and the lack of investigation prior to a hearing where video evidence showed the offender was not Plaintiff’s son. (*Id.* at ¶¶ 16-19.) The FAC states Plaintiff and his son suffered reputational harm, emotional distress, and humiliation. (*Id.* at ¶ 22.)